

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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FREDERICK WILLIS,

**SUMMONS**

Index No.:

Plaintiff,

-against-

The Basis of Venue is:  
Location of Incident

TYRONE THOMPSON, ABRAM MALDONADO, JOHN  
JARQUIN, TERENCE MCCABE, NATHALIE  
FERNANDEZ, AND JOHN AND JANE DOE ONE  
THROUGH TWO,

Plaintiff designates NEW  
YORK County as the place of  
trial.

Defendants.

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**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
January 18, 2023

Yours, etc.



DEVERNA LAW  
John Paul DeVerna, Esq.  
Attorney for Plaintiff(s)  
111 John Street, Suite 1615  
New York, New York  
10038  
T- (212) 321-0025

F- (212) 321-0024

## Defendants' Addresses:

TYRONE THOMPSON, 1 Police Plaza Path, New York, NY 10038

ABRAM MALDONADO; New York City Police Department, 44th Precinct, 2 E 169th St,  
Bronx, NY 10452JOHN JARQUIN, New York City Police Department, 107th Precinct 71-01 Parsons Blvd,  
Queens, NY 11365TERENCE MCCABE, New York City Police Department, 83rd Precinct, 480 Knickerbocker  
Ave, Brooklyn, NY 11237NATHALIE FERNANDEZ, , New York City Police Department, 26th Precinct 520 W 126th St,  
New York, NY 10027

JOHN AND JANE DOE ONE THROUGH TWO, 1 Police Plaza Path, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK

----- X

FREDERICK WILLIS,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

TYRONE THOMPSON, ABRAM MALDONADO,  
JOHN JARQUIN, TERENCE MCCABE, NATHALIE  
FERNANDEZ, AND JOHN AND JANE DOE ONE  
THROUGH TWO,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff Frederick Willis by their attorneys, DEVERNA LAW, as and for their Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of an October 14, 2019, incident, in which defendants acting under color of state law, unlawfully arrested and detained Plaintiff, while other Defendants unlawfully failed to intervene in the violation of Plaintiff's rights. Plaintiff was maliciously prosecuted until the matter ended in Plaintiff's favor.
3. As a result, Plaintiff suffered serious physical and emotional injuries.

4. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

**PARTIES**

5. Plaintiff Frederick Willis is a resident of the state of New York.
6. Defendant TYRONE THOMPSON was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant TYRONE THOMPSON was, at the time relevant herein, a police officer in the 25th Precinct. Defendant TYRONE THOMPSON is sued in their individual and official capacities.
7. Defendant ADRAM MALDONADO was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant ABRAM MALDONADO was, at the time relevant herein, a police officer in the 45th Precinct. Defendant ABRAM MALDONADO is sued in their individual and official capacities.
8. At all times relevant Defendant JOHN AND JANE DOE ONE THROUGH TWO were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants JOHN AND JANE DOE ONE THROUGH TWO, but such information is believed to be in the possession of the defendants.
9. At all times relevant herein, Defendants JOHN AND JANE DOE ONE THROUGH TWO, were acting as agents, servants and employees of the City of New York and the NYPD.

Defendants JOHN AND JANE DOE ONE THROUGH TWO, are sued in their individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

**FACTUAL CHARGES**

11. On or about October 14, 2019, at approximately 08:23 AM, Plaintiff was in the vicinity of 520 West 126 Street, New York, NY.
12. On or about that date and time, Defendants, including Defendants TYRONE THOMPSON, ABRAM MALDONADO, while acting in concert, falsely arrested and detained Plaintiff.
13. Plaintiff was not told what they were being arrested for.
14. Plaintiff did not resist arrest and complied with all lawful orders.
15. Based on information and belief, a Defendant supervisor, ABRAM MALDONADO, was present on the scene and did not stop the unlawful arrest of Plaintiff.
16. At the time of Plaintiff's arrest, Defendants officers did not have probable cause or reasonable suspicion to believe Plaintiff had committed any criminal offense or violation of the law. Further, given the information available, Defendants knew or should have

- known Plaintiff was innocent of any wrongdoing or should have further inquired into the matter prior to making any arrest.
17. Indeed, earlier Plaintiff had reported to the police alleging he was a victim of a September 30, 2019, assault that took place inside of 520 West 126<sup>th</sup> Street, showed them his injuries, invited them to view video surveillance supporting his claim, provided witness names to the encounter, but his entreaties were ignored.
  18. On October 1, 2019, Defendants JOHN JARQUIN, TERENCE MCCABE went to 520 West 126<sup>th</sup> Street and conducted an insufficient investigation. Defendant NATHALIE FERNANDEZ later conducted a similarly insufficient investigation. As a result of Defendants efforts, Defendants sought to arrest Plaintiff, though it was Plaintiff that was victim of the assault.
  19. On October 14, 2019, prior to his arrest by Defendants TYRONE THOMPSON ABRAM MALDONADO, NATHALIE FERNANDEZ, AND JOHN AND JANE DOE ONE THROUGH TWO, Plaintiff offered, among other things, Defendant Officers to view video surveillance and provided witness names to the encounter but his entreaties were ignored.
  20. Defendants, acting in concert, used an unreasonable and excessive amount of force in effectuating Plaintiff's arrest and detention by fixing the handcuffs upon his wrist in an excessively tight manner, failed to adjust them despite requests they do so.
  21. Defendants refused to adjust the handcuffs despite Plaintiff's repeated requests.
  22. After Plaintiff's arrest, at the Precinct, Plaintiff was subjected to a search of the intimate parts of their body causing embarrassment and humiliation.
  23. Plaintiff was falsely charged with assorted crimes under arrest number M19645786.

24. Plaintiff was unlawfully detained for approximately twenty-four (24) hours before being released.
25. Defendants prepared false sworn affidavits and false police reports relating to Plaintiff's arrest.
26. The Defendant police officers falsely stated to the New York County District Attorney's Office that Plaintiff had committed a crime despite knowing that they lacked a legal and factual basis to allege that Plaintiff committed any crime.
27. Based on the information provided to them, the New York County District Attorney's Office charged Plaintiff with several charges under CR-032564-19NY, all of which were later dismissed.
28. Defendants repeatedly falsified information relating to the facts and circumstances surrounding Plaintiff's arrest.
29. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiff and violate their civil rights.
30. Some of the Defendant officers who did not participate in the incident but were otherwise present and observed the violation of Plaintiff's constitutional rights failed to intercede on Plaintiff's behalf.
31. Plaintiff's injury was a foreseeable result of Defendant officers unlawful conduct and was the proximate cause of their injuries.

**CAUSE OF ACTION**

Excessive Force Under  
42 U.S.C. § 1983

32. The above paragraphs are here incorporated by reference as though fully set forth.

33. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
34. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**CAUSE OF ACTION**

Unlawful Stop and Search

Under 42 U.S.C. § 1983 Against Individual Defendants

35. The above paragraphs are here incorporated by reference as though fully set forth.
36. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped and searched, and subjected to denial of their due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable stop and seizure and denial of due process under the Fourth and Fifth and Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
38. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
39. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.



40. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**CAUSE OF ACTION**

False Arrest and False Imprisonment

Under 42 U.S.C. § 1983 Against Individual Defendants

41. The above paragraphs are here incorporated by reference as though fully set forth.
42. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
43. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
44. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
45. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
46. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
47. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**CAUSE OF ACTION**

Failure to Intervene

Under 42 U.S.C. § 1983 Against Individual Defendants

48. The above paragraphs are here incorporated by reference as though fully set forth.

49. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
50. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
51. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**CAUSE OF ACTION**

Malicious Abuse of Process

Under 42 U.S.C. § 1983 Against Individual Defendants

52. The above paragraphs are here incorporated by reference as though fully set forth.
53. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
54. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
55. Defendant intended to inflict substantial harm upon Plaintiff.
56. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
57. Defendant's actions deprived plaintiff of their constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
58. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**CAUSE OF ACTION****Malicious Prosecution**

Under 42 U.S.C. §1983 Against Individual Defendants

59. The above paragraphs are here incorporated by reference as though fully set forth.
60. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of their constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
61. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused them to be prosecuted.
62. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
63. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
64. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
65. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**JURY DEMAND**

66. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants, jointly and severally:

- a) For each and every of the previously stated Cause(s) of Action, a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter; and
- b) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- c) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York  
January 23, 2023



DEVERNA LAW  
By John Paul DeVerna, Esq.  
Attorney for Plaintiff(s)  
111 John Street, Suite 1615  
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**ATTORNEY'S VERIFICATION**

**JOHN PAUL DEVERNA**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county where I maintain my office.

DATED: New York, New York  
January 23, 2023



DEVERNA LAW  
By John Paul DeVerna, Esq.  
Attorney for Plaintiff(s)  
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SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK

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FREDERICK WILLIS,

Plaintiff,

-against-

TYRONE THOMPSON, ABRAM MALDONADO, JOHN JARQUIN, TERENCE  
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THROUGH TWO,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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DEVERNA LAW  
By John Paul DeVerna, Esq.  
Attorney for Plaintiff(s)  
111 John Street, Suite 1615  
New York, New York 10038

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To: CORPORATION COUNSEL OF NEW YORK  
Attorney(s) for Defendants

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Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for